

LAW AND MOTION TENTATIVE RULINGS

DATE: AUGUST 21, 2026 TIME: 8:30 A.M.

petition, the memorandum of points and authorities, and its accompanying declaration and exhibits were served on Sunrise via certified mail, return receipt requested at 588 Lott Drive Brentwood, CA. (Civ. Code §8486.) There is no opposition.

Here, the verified petition includes the date the lien was recorded (January 20, 2026), a certified copy of the lien (exhibit C to verified petition), the county in which the lien was recorded, and a legal description of the property to be released (Ver. Pet. at ¶ 1.) Sunrise has not filed an action to foreclose on its lien, which it was required to do by April 20, 2026, or 90 days after it recorded the lien. (Ver. Pet. at ¶ 7; Civ. Code § 8460.). Therefore, the lien is unenforceable and the petition to release the property from the mechanic's lien is granted.

Section 8488, subdivision (c), provides that the prevailing party is entitled to reasonable attorney's fees. According to the declaration of Eliot Teitelbaum, counsel for petitioners, he charged \$500.00/hour for his services in connection with this matter and seeks a fee award in the amount of \$7,500.00 against Sunrise. Teitelbaum asserts he normally charges \$950.00/hour and has spent more than 15 hours preparing this petition and communicating with Sunrise. Reasonable fees in the amount of \$7,500.00 are awarded against Sunrise.

No. 25CV01867

MCWAID v. REGENTS, et al.

DEFENDANT JORDAN'S MOTION TO STRIKE COMPLAINT

The motion is denied.

This is a motor vehicle collision case. Plaintiff claims defendant David Aaron Jordan caused the September 28, 2023 collision at the intersection of Coolidge Drive and Hagar Drive in Santa Cruz by speeding and driving while intoxicated. Defendant rear-ended plaintiff while she was on her bike waiting at the intersection. Plaintiff alleges that defendant smelled of alcohol and was impaired by alcohol when he drove. Plaintiff states claims for negligence against Jordan, negligence against the investigating USCS police officers, failure to perform mandatory duty and negligence of government employees against the Regents.²

Defendant Jordon seeks to strike plaintiff's claims for punitive damages on the ground she failed to plead any cause of action supporting malice, oppression, or fraud.

² The claims against the Regents and its employees Andrew Penrose and Frank Sanchez were dismissed via their demurrer to the first amended complaint. (Order, 12/17/25.)

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California Code of Civil Procedure section 436, provides: “[t]he court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.” “Motions to strike can be used to reach defects in or objections to pleadings that are not challengeable by demurrer. Complaints, cross-complaints, answers and demurrers are all subject to a motion to strike (Code Civ. Proc., § 435, subd. (a)(2)).³ The grounds for a motion to strike must appear on the face of the pleadings under attack, or from matter which the court may judicially notice. (§ 437; *CPF Agency Corp. v. R&S Towing Service* (2005) 132 Cal.App.4th 1014, 1032.)

In order to state a prima facie claim for punitive damages, a complaint must set forth the elements that the defendant is guilty of oppression, fraud or malice. (§ 3294, subd. (a); *College Hospital, Inc. v. Superior Court* (1994) 8 Cal.4th 704, 721.)

“Malice is defined in the statute as conduct intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (*Id.* at 725.) “As amended to include [despicable], the statute plainly indicates that absent an intent to injure the plaintiff, ‘malice’ requires more than a ‘willful and conscious’ disregard of the plaintiffs’ interests. The additional component of ‘despicable conduct’ must be found.” (*Ibid.*) The statute’s reference to despicable conduct represents a “new substantive limitation on punitive damage awards.” (*Ibid.*) Despicable conduct is “conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people. Such conduct has been described as ‘having the character of outrage frequently associated with crime.’” (*Tomaselli v. Transamerica Ins. Co.* (1994) 25 Cal.App.4th 1269, 1287.)

“In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled.” (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) “The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. [Citation.] Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim. [Citation.]” (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.)

The court finds plaintiff’s allegations are sufficient to support a claim for punitive damages. “[O]ne who voluntarily commences, and thereafter continues, to consume alcoholic beverages to the point of intoxication, knowing from the outset that he must thereafter operate a motor vehicle demonstrates, in the words of Dean Prosser, ‘such a conscious and deliberate

³ All statutory references are to the Code of Civil Procedure, unless otherwise stated.

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disregard of the interests of others that his conduct may be called wilful or wanton.’ (*Prosser, supra*, § 2, at pp. 9-10.)” (*Taylor v. Superior Court* (1979) 24 Cal.3d 890, 899.)